

(*Fuentes*, 19 Cal.5th at pgs. 104-05.)

The facts of *Fuentes* are significantly distinguishable from the facts of the instant case. The holding of *Fuentes*, even if it had been decided after the hearing on defendants' motion, does not warrant a different result.

Finally, plaintiff requests relief under CCP § 473(b) because the tentative ruling was adopted without oral argument due to plaintiff's untimely request. Section 473(b) permits a court, in its discretion, to "relieve a party from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect." (Civ. Code. Proc., § 473(b).) The moving party bears the burden to show a specific ground under the statute and to establish diligence and lack of prejudice. (*Id.*)

Given that plaintiff's motion is not supported by declaration, she fails to demonstrate any mistake, inadvertence, surprise or excusable neglect warranting relief from the court's prior order. Nor does plaintiff establish any likelihood of a different outcome if she had timely requested oral argument.

Plaintiff's motion for reconsideration is denied.

16. S-CV-0055969 Zick, Tanner v. Burachek, Zhanna

Petition for Approval of Compromise of Claim of Proceeds of Judgment for Minor

The petition for approval of minor's compromise claim is granted. After careful consideration of the petition and attachments, the court finds the settlement is in the best interest of the minor. (Prob. Code, § 3500; Code Civ. Proc., § 372; *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1337-38.)

17. S-CV-0056437 Faulkmer, Steven v. MCVDB

Defendants' Motion for Judgment on the Pleadings

Defendants' request for judicial notice is granted.

Defendants move for judgment on the pleadings. Plaintiff opposes the motion.

"A motion for judgment on the pleadings is the functional equivalent of a general demurrer." (*Spencer v. City of Palos Verdes Estates* (2023) 88 Cal.App.5th 849, 861.) As such, the grounds for the motion for judgment on the pleadings must appear on the face of the complaint and any judicially noticeable documents. (*Ibid.*) Further, the court must accept as true all material factual allegations in the complaint. (*Ibid.*) The court may take judicial notice of a defendant's uncontroverted admissions in responses to request for admissions or interrogatories. (*Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181